

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
GREGORY GAFFNEY,

Plaintiff,

-against-

THE CITY OF NEW YORK,
P.O. FRANCISCO DELOSSANTOS,
P.O. JIMMY CLERGE,
P.O. VAUGHAN ETTIENNE,
P.O. RYAN GALVIN, and
LT. THOMAS PASSOLO,

Defendants.

----- X

Plaintiff designates
Kings County as the
place of trial

Basis of venue is
county of occurrence

SUMMONS

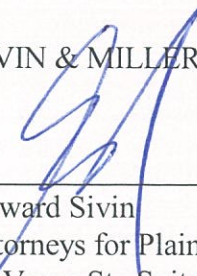
ORIGINAL

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 21, 2016

SIVIN & MILLER, LLP

By 
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

- THE CITY OF NEW YORK,
c/o NYC Corporation Counsel, 100 Church Street, New York, NY 10007
- P.O. FRANCISCO DELOSSANTOS,
c/o NYPD 72nd Pct., 830 4th Ave, Brooklyn, NY
- P.O. JIMMY CLERGE,
c/o NYPD Emergency Services Unit, 10 New Montrose Avenue, Brooklyn, NY
- P.O. VAUGHAN ETTIENNE,
c/o NYPD 73rd Detective Squad, 1470 E. New York Avenue, Brooklyn, NY
- P.O. RYAN GALVIN,
c/o NYPD Emergency Services Unit, 10 New Montrose Avenue, Brooklyn, NY
- LT. THOMAS PASSOLO,
c/o NYPD Gun Violence Suppression Division, 860 Remsen Avenue, Brooklyn, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
GREGORY GAFFNEY,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
P.O. FRANCISCO DELOSSANTOS,
P.O. JIMMY CLERGE,
P.O. VAUGHAN ETTIENNE,
P.O. RYAN GALVIN, and
LT. THOMAS PASSOLO,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York (hereinafter
“the City”) was and is a municipal corporation, duly organized and existing under and by virtue of
the laws of the State of New York.

2. That prior to the institution of this action, and within ninety (90) days from the
date when the state-law cause of action accrued herein, a notice of claim and intention to sue was
duly served upon and filed with the defendants on behalf of plaintiff; that this action was not
commenced until the expiration of thirty (30) days after such notice of claim and intention to sue
was presented and defendants have neglected and/or refused to make adjustment or payment

thereon, and this action is being commenced within one year and ninety days after the state-law cause of action accrued herein.

3. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the "NYPD").

4. That at all times herein mentioned, defendant P.O. FRANCISCO DELOSSANTOS (hereinafter "Delossantos") was and is an officer employed by the NYPD.

5. That at all times herein mentioned, Delossantos was acting within the course and scope of his employment with the NYPD.

6. That at all times herein mentioned, Delossantos was acting under color of state law.

7. That at all times herein mentioned, defendant P.O. JIMMY CLERGE (hereinafter "Clerge") was and is an officer employed by the NYPD.

8. That at all times herein mentioned, Clerge was acting within the course and scope of his employment with the NYPD.

9. That at all times herein mentioned, Clerge was acting under color of state law.

10. That at all times herein mentioned, defendant P.O. VAUGHAN ETTIENNE (hereinafter "Ettienne"), was and is an officer employed by the NYPD.

11. That at all times herein mentioned, Ettienne was acting within the course and scope of his employment with the NYPD.

12. That at all times herein mentioned, Ettienne was acting under color of state law.

13. That at all times herein mentioned, defendant P.O. RYAN GALVIN

(hereinafter “Galvin”), was and is an officer employed by the NYPD.

14. That at all times herein mentioned, Galvin was acting within the course and scope of his employment with the NYPD.

15. That at all times herein mentioned, Galvin was acting under color of state law.

16. That at all times herein mentioned, defendant LT. THOMAS PASSOLO (hereinafter “Passolo”), was and is a lieutenant employed by the NYPD.

17. That at all times herein mentioned, Passolo was acting within the course and scope of his employment with the NYPD.

18. That at all times herein mentioned, Passolo was acting under color of state law.

19. That at all times herein mentioned, Passolo supervised and oversaw the activities of the other named NYPD officers.

THE FACTS

20. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

21. That on or about November 2, 2013, in the County of Kings, City and State of New York, The City of New York, by and through officers of the NYPD, including the named defendants herein (hereinafter referred to collectively as “the officers”), without a search warrant and without consent or legal justification, searched premises in which plaintiff had a legitimate expectation of privacy.

22. That pursuant to the aforesaid search, the officers purported to have recovered an illegal firearm.

23. That following their purported discovery of an illegal firearm, and without an arrest warrant and without probable cause to believe that plaintiff had committed or was about to commit a crime or criminal violation, the officers detained, handcuffed, arrested, and imprisoned plaintiff.

24. That on or about November 2 or 3 of 2013, the officers then initiated and/or caused to be initiated against plaintiff a prosecution, charging plaintiff with multiple crimes in connection with the firearm.

25. That the officers did not have probable cause to believe that plaintiff had committed any of the crimes with which he was charged.

26. That the officers did not have probable cause to believe that the prosecution of plaintiff would succeed.

27. That in support of the aforementioned prosecution, the officers knowingly made statements and conveyed evidence to prosecutors that they knew to be false.

28. That among the false statements that the officers made and the false evidence that the officers knowingly conveyed to prosecutors in support of the prosecution of plaintiff were the following: a) the officers falsely claimed that plaintiff asserted that he resided at the premises from which the firearm purportedly was recovered; 2) the officers falsely claimed that plaintiff asserted that he knew that the firearm was located at the premises; 3) the officers falsely claimed that plaintiff asserted that he knew that the firearm was located in plaintiff's room; 4) the officers falsely claimed that plaintiff asserted that the firearm was located in a laundry basket in plaintiff's room.

29. That the officers repeated the aforementioned false accusations against and about plaintiff during their Grand Jury testimony.

30. That the aforementioned fabrications by the officers constituted material evidence in the prosecution of plaintiff and evidence that was likely to influence a jury's decision on plaintiff's guilt or innocence.

31. That the officers also withheld from plaintiff, plaintiff's counsel, and prosecutors evidence that would have tended to exculpate plaintiff of the crimes with which he was charged.

32. That on or about May 17, 2016, all charges against plaintiff were dismissed and the criminal prosecution terminated favorably to plaintiff.

33. That in the interim, and as a result of the unlawful arrest and prosecution, plaintiff was incarcerated for over one year, from November 2, 2013 through December 2, 2014.

34. That plaintiff's deprivation of liberty was a direct result of the withholding of exculpatory evidence by the officers and the intentional conveyance to prosecutors of material evidence that the officers knew was fabricated.

35. That each of the officers acted maliciously in connection with the aforesaid arrest, prosecution, fabrication of evidence, and withholding of exculpatory evidence.

36. That as a result of the foregoing, plaintiff suffered and continues to suffer physical, emotional, and psychological injuries, pain and suffering and loss of enjoyment of life, loss of liberty, embarrassment, humiliation, and damage to his name and reputation, lost earnings, and other economic loss.

37. That each of the officers acted collectively and in concert with one another in connection with the arrest and prosecution of plaintiff, the withholding of exculpatory evidence, and the fabrication of evidence.

38. That each of the officers observed and knew about the illegal and unconstitutional actions of his fellow officers, had a reasonable opportunity to intervene to prevent or stop those actions, and intentionally refused and failed to do so.

39. That each of the officers acted with malice and spite in the arrest, prosecution, withholding of exculpatory evidence, and fabrication of evidence in support of the arrest and prosecution of plaintiff.

**FIRST CAUSE OF ACTION AGAINST DEFENDANTS DELOSSANTOS, CLERGE,
ETTIENNE, GALVIN and PASSOLO**

(42 U.S.C. § 1983 Claim Arising From Illegal Search And Seizure)

40. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

41. That the aforementioned actions of these defendants in searching the aforementioned premises and purportedly seizing the firearm from the premises constitute an illegal search and seizure in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the US Constitution, and entitle plaintiff to recover damages from these defendants pursuant to 42 U.S.C. § 1983.

**SECOND CAUSE OF ACTION AGAINST DEFENDANTS DELOSSANTOS, CLERGE,
ETTIENNE, GALVIN and PASSOLO**

(42 U.S.C. § 1983 Claim Arising From False Arrest)

42. Plaintiff repeats and realleges each and every allegation set forth above as

though fully set forth at length herein.

43. That the aforementioned actions of these defendants in falsely and improperly arresting and imprisoning plaintiff constitute an illegal seizure of plaintiff in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the US Constitution, and entitle plaintiff to recover damages from these defendants pursuant to 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under NY State Law)

44. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

45. That the aforementioned actions of these defendants in initiating and/or causing to be initiated a prosecution of plaintiff without probable cause constitute a malicious prosecution of plaintiff, for which the individual defendants are liable under NY State law and for which the City is vicariously liable under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION AGAINST DEFENDANTS DELOSSANTOS, CLERGE,
ETTIENNE, GALVIN and PASSOLO
(42 U.S.C. § 1983 Claim Arising From Malicious Prosecution)

46. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

47. That the aforementioned malicious prosecution constitutes an illegal seizure and deprivation of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the US Constitution, and entitles plaintiff to recover damages from these defendants pursuant to 42 U.S.C. § 1983.

**FIFTH CAUSE OF ACTION AGAINST DEFENDANTS DELOSSANTOS, CLERGE,
ETTIENNE, GALVIN and PASSOLO**
(42 U.S.C. § 1983 Claim Based On Denial Of Right To Fair Trial)

48. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

49. That the aforesaid actions by these defendants constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

**SIXTH CAUSE OF ACTION AGAINST DEFENDANTS DELOSSANTOS, CLERGE,
ETTIENNE, GALVIN and PASSOLO**
(42 U.S.C. § 1983 Claim Based On *Brady* Violation)

50. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

51. That the aforesaid actions by these defendants in withholding exculpatory evidence violated plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and *Brady v. Maryland*, 373 U.S. 83 (1963), and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

**SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS DELOSSANTOS, CLERGE,
ETTIENNE, GALVIN and PASSOLO**
(42 U.S.C. § 1983 Claim based on Failure to Intervene)

52. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

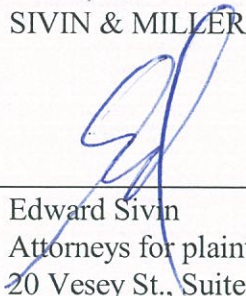
53. That these defendants' failures to intervene to prevent and/or stop the improper and unconstitutional conduct of their fellow officers entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

54. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Delossantos, Clerge, Ettienne, Galvin, and Passolo, and attorney's fees against defendants Delossantos, Clerge, Ettienne, Galvin, and Passolo, pursuant to 42 U.S.C. § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
September 21, 2016

Yours, etc.
SIVIN & MILLER, LLP

By 
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

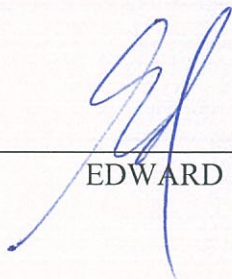
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
September 21, 2016



EDWARD SIVIN

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Year 2016

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COUNTY OF KINGS

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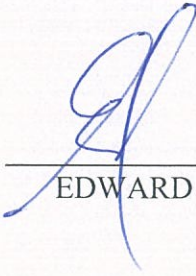
VERIFIED COMPLAINT

SIVIN & MILLER, LLP

Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
September 21, 2016